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Case Number: 26SMCV01622 Hearing Date: August 19, 2026 Dept: M

CASE NAME: Handal v. L.A. Wellness Center, et al.

CASE NO.: 26SMCV01622

MOTION: Demurrer to the First Amended Complaint

HEARING DATE: 8/19/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant Los Angeles

Wellness Center demurs to Plaintiff Jay B. Handal's First Amended Complaint (“FAC”). Generally, Defendant argues that there are defects with the 30-day Notice.

Defendant's

request for judicial notice is GRANTED. The Court notes that, while notice is taken of the existence of the declaration filed in court, no weight is given to the hearsay statements therein. (RJN Ex. 2.)

First,

Defendant asserts that the notice does not identify the premises. However, the attached 30-day notice identifies the premises as “12320 W. Pico Blvd. [¶] Los Angeles, CA 90064” and states the tenancy at the “above-described premises” was terminated. (FAC, Ex. 2.) The notice describes the real property with reasonable certainty. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 395–39.)

Next,

Defendant asserts that the FAC does not comply with Civil Code section 1946.1, which would require a 60-day notice to “qualified commercial tenants” for tenancies which lasted for more than a year. (Civ. Code § 1946.1(b)-(c).) The record does not establish that Defendant is a “qualified commercial tenant”

under that section. The FAC and judicially noticeable facts do not establish that Defendant “is a microenterprise, a restaurant with fewer than 10 employees, or a nonprofit organization with fewer than 20 employees” or that Defendant provided Handal “within the previous 12 months, a written notice that the tenant is a qualified commercial tenant and a self-attestation regarding the number of employees, at such time the protections under this section come into place.” (Civ. Code § 1946.1(k)(4).) Section 1946 and the written lease otherwise only requires a 30-day notice period to terminate the lease, which was allegedly given. (FAC, Ex. 1, ¶ 1, see Master Lease ¶ 37.)

Defendant

also contends that the notice fails to specify a clear calendar date upon which the tenancy terminates. Defendant cites no authority for the proposition that a notice must state the “precise date possession must be surrendered.” The statutes only provide a minimum notice period and delivery requirements. (Civ. Code §§ 1161, 1946.) Defendant was allegedly given 30 days’ notice from February 20, 2026, through March 20, 2026. (FAC ¶¶ 8-9, Ex. 2.) Plaintiff did not commence this action until March 24, 2026, meaning that it gave more than 30 days’ notice before attempting to evict Defendant.

Next,

Defendant argues that the notice only name one subtenant, L.A. Wellness, and that no such entity exists. The FAC names Defendant as L.A. Wellness Center a.k.a. Los Angeles Wellness Center Inc. The notice identifies “L.A. Wellness Center” as the subtenant. (FAC Ex. 2.) Defendant used both names “L.A. Wellness Center” and “Los Angeles Wellness Center” interchangeably in the sublease and its addendum. (FAC, Ex. 1.) In any event, the sublease specifically defines the sublessor as “L.A. Wellness Center,” so there is nothing confusing or improper about using the initialization under such circumstances. Using the tenant’s name, as defined in the relevant sublease, would strictly comply with the statutory notice requirements. The Court has also already rejected a similar argument in the related action. The Court finds that any confusion on this issue on Defendant’s part is entirely feigned. As the court already explained, any insubstantial variation in Defendant’s name would not affect the court’s jurisdiction over Defendant. (Sakaguchi v. Sakaguchi, (2009) 173 Cal.App.4th 852; see Hawkins v. Pacific Coast Building Products, Inc., (2004) 124 Cal.App.4th 1497 [amended complaint correcting an “excusable misnomer in corporate name” related back to the original complaint’s filing date]; see also Emery v. Kipp (1908) 154 Cal. 83, 86 [“If a man chooses to take the title to real estate in a name other than his true name, so

far as that property is concerned, he has assumed the name in which he takes title as his true name, and in suits affecting the property, he may be sued by such designation”].)

In addition, Defendant asserts that the method of service was improper. The sublease permits service of notices via personal service, U.S. Mail, or overnight courier. (FAC, Ex. 1, § 17; see *Culver Ctr. Partners E. #1, L.P. v. Baja Fresh Westlake Vill., Inc.*, (2010) 185 Cal. App. 4th 744 [commercial lease provisions control over statutory service requirements].) The FAC alleges that service was performed pursuant to the terms of the written commercial lease. (FAC ¶ 10.a.5.) This averment is sufficient for pleading purposes. Any purported defect with the service is not apparent on the face of the FAC.

Finally, Defendant claims that it has a cannabis license. This argument is a non-sequitur and would not support a demurrer. Defendant does not explain why its license status would protect it from an eviction here. Even if the purported lack of a license is a reason for the eviction, Defendant cites no authority that there needs to be a specific reason to terminate a lease on a 30-day notice. Generally, a month-to-month commercial tenancy may be terminated without good cause with 30 days' notice. (*Wasatch Prop. Mgmt. v. Degrate*, (2005) 35 Cal.4th 1111, 1117.) Defendant also cites no provision in the lease or sublease which would require a specific cause for termination.

Accordingly,
the demurrer is OVERRULED.

Defendant
to answer within 5 days.